

25STCV14105 25STCV14105

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-09-14

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Case Number: 25STCV14105 Hearing Date: September 14, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

ERIC BIXLER, et al.,

Plaintiffs,

vs.

city of los

angeles,

Defendant.

Case No.:

25STCV14105

Hearing Date:

September 14, 2026

Hearing Time: 2:00 p.m.

[TENTATIVE] ORDER RE:

DEFENDANT CITY OF
LOS ANGELES' DEMURRER TO PLAINTIFFS' COMPLAINT

Background

On May 14, 2025,
Plaintiffs Eric Bixler ("Bixler") and Richard Jaramillo ("Jaramillo") (jointly,
"Plaintiffs") filed this action against Defendant City of Los Angeles (the "City")
alleging one cause of action for whistleblower retaliation (Lab. Code, § 1102.5).

Plaintiffs now move for
an order that the City and the Los Angeles Police Department ("LAPD") produce
records. The City opposes. Plaintiffs replied.

Legal Standard

There
is a special two-step procedure for securing disclosure of peace officer
personnel records. ((Warrick v. Superior Court (2005) 35 Cal.4th 1011, 1019.) First, the party seeking disclosure
must file a motion that identifies the peace officer, the agency in possession
of the records, a description of the records, who is seeking the records, as
well as the time and place of the hearing. ((Evid. Code, § 1043, subd. (b)(1).) The motion must be accompanied by a
declaration showing "good cause" for disclosure of the records: setting forth
the materiality of the records, and stating upon reasonable belief that the
governmental agency has the requested documents. (Evid. Code, § 1043, subd. (b)(3).) This is a so-called "Pitchess" motion,
derived from Pitchess v. Superior Court (1974) 11 Cal.3d 531.

The Evidence

Code section 1043, subdivision (b) "good cause" declaration must be
sufficiently specific "to preclude the possibility of [the movant] simply
casting about for any helpful information." ((People v. Mooc (2001) 26 Cal.4th 1216, 1226.) However, a declaration based
upon information and belief
and containing hearsay may be used to evidence good cause in support of a
Pitchess motion. ((Haggerty v. Superior Court (2004) 117 Cal.App.4th 1079, 1086.)
The moving party need show only a "plausible factual foundation" for discovery—i.e., a scenario of officer misconduct
that might occur or could have occurred. (Warrick v. Superior Court, supra, at p. 1025.) All that is required is the presentation
of a scenario that
might have or could have occurred, i.e., a "relatively low threshold." ((Uybungco v.

Superior Court (2008) 163

Cal.App.4th 1043, 1048); (see also *Blumberg v. Superior Court* (2011) 197 Cal.App.4th 1245, 1248 [the good cause requirement of section 1043(b) “embodies a ‘relatively low threshold’ for discovery’ [citation], under which a defendant need demonstrate only ‘a logical link between the defense proposed and the pending charge’ and describe with some specificity ‘how the discovery being sought would support such a defense’”]); (*Becerrada v. Superior Court* (2005) 131 Cal.App.4th 409, 413 [“A showing of good cause is measured by ‘relatively relaxed standards’ that serve to ‘insure the production’ for trial court review of ‘all potentially relevant documents.’”].)

Second, if the

court finds good cause, then an in camera hearing must be held. ((*Slayton v. Superior Court* (2006) 146

Cal.App.4th 55, 61.) After personally examining the records in camera, the trial court shall order disclosure of peace officer personnel records that are “relevant to the subject matter involved in the pending litigation.” (Evid. Code, § 1045, subd. (a); (*People v. Mooc*, supra, 26 Cal.4th at p. 1226.) If

disclosure is ordered, the court must also order that the disclosed information may not be used “for any purpose other than a court proceeding pursuant to applicable law.” (Evid. Code, § 1045, subd. (e).)

In terms of procedure, notice

of the motion must be served in compliance with Code of Civil Procedure section 1005, subdivision (b), on the parties and on the governmental agency that has the records. (Evid. Code, § 1043, subd. (a).) The agency is required to notify the individual officer whose records are sought. (Evid. Code, § 1043, subd. (c); see also Evid. Code, § 1043, subd. (d) [“No hearing upon a motion for discovery or disclosure shall be held without full compliance with the notice provisions of this section except upon a showing by the moving party of good cause for noncompliance, or upon a waiver of the hearing by the governmental agency identified as having the records.”].)

Discussion

A.

Documents Sought

Plaintiffs

seek production of “the following records pursuant to Evidence

Code §§ 1043 and 1045:

1. The complaint

face sheet and the complete witness interviews in audio or transcript form, or both, for LAPD Internal Affairs investigation Complaint Form (‘CF’) No. 25-003389 conducted in response to the instant lawsuit, Case No. 25STCV14105.”

(Notice of Mot., 2:7-11.)

B.

Good

Cause

Plaintiffs

explain that “[i]n this Motion, Plaintiffs seek discovery of the LAPD’s Internal Affairs investigation conducted in response to this civil Complaint, specifically the complaint face sheet and the complete witness interviews in audio or transcript form that LAPD’s Internal Affairs conducted in response to the instant lawsuit, Case No. 25STCV14105 (LAPD IA CF No. 25-003389).” (Mot., 5:11-14.) Plaintiffs assert that “there is good cause for the discovery sought because it is relevant to prove the elements of Plaintiffs’ retaliation claims.” (Mot., 14:14-16.)

In support of

the motion, Plaintiffs’ counsel provides a declaration, stating, inter alia, that “Eric Bixler began his employment with the LAPD in or around 1996 and previously served as the Lieutenant II over the U.S. Marshals Task Force since in or around 2018. He has since retired from the LAPD. Plaintiff Richard Jaramillo has been employed as a sworn peace officer in the LAPD since in or around 2000.” (O’Beirne Decl., ¶ 4.) “The Los Angeles Police Department’s U.S. Marshals Task Force ... combines the resources and efforts of the United States Marshals Service with those of the LAPD to locate, arrest, and prosecute the most dangerous and violent criminals in Los Angeles,” and, “[d]ue to Task Force’s investigative and surveillance work, its members work undercover and display no police identification until they tactically deploy for an arrest.” (O’Beirne Decl., ¶¶ 5, 10.) “Integral to achieving this outcome is the presence of two uniformed police officers, known as a ‘chase unit,’ on standby to effectuate the suspect’s arrest when it is safest to do so. Beginning in or

around 2020, by order of the Chief of Police, LAPD Metropolitan Division ('Metro') 'loaned' police officers to the Task Force to serve as its 'chase unit.' The chase unit officers' loans to the Task Force have historically been long-term in nature so that the chase unit officers are deeply familiar with the way the rest of the Task Force operates and tactically deploys in order to safely effectuate arrests." (O'Beirne Decl., ¶ 11.) "For these reasons, LAPD Officer Jonathan Pacheco was loaned from Metro to the Task Force to work the Task Force chase unit continuously from November 2021 until mid-2023, and LAPD Officer Derrick Boykins was loaned from Metro to the Task Force to work the same chase unit almost continuously from June 2022 until mid-2023." (O'Beirne Decl., ¶ 12.)

Plaintiffs'

counsel explains that "[i]n or around early 2023, Karen Bass was sworn in as Mayor of the City of Los Angeles," and "Chief of Police Michel Moore directed supervisors in Metro to attempt to recruit Black officers specifically for the Mayor's Detail, which is the bodyguard detail for the Mayor, and falls under Metropolitan Division. (Compl. ¶26.) Chief Moore's attempt to recruit Black officers for the Mayor's Detail was not requested from Mayor Bass, nor known by Mayor Bass. Instead, Moore's recruitment of Black officers for the Detail was an attempt to pander to the Mayor." (O'Beirne Decl., ¶¶ 12-13.) "From in or around January 2023 to February 2023, Police Officer III Derrick Boykins learned that Black officers in Metro were being solicited to work the Mayor's Detail. In addition, Officer Boykins himself was asked to work the Mayor's Detail. Boykins is Black." (O'Beirne Decl., ¶ 14.) "On or about February 3, 2023, Officer Boykins spoke with his supervisors in the Task Force, Plaintiffs Bixler and Jaramillo, to report that the Department's singling out of Black officers for recruitment to the Mayor's Detail constituted race discrimination. Boykins was concerned that he and other Black officers in Metro would be subjected to retaliation if they declined to be assigned to the Detail," and that same day "Officer Boykins and Plaintiff Jaramillo overheard a telephone conversation that Plaintiff Bixler had with his brother, Captain Brian Bixler (then the Captain III over Metropolitan Division), during which Captain Bixler confirmed that Metro had received a directive from above to single out Black officers for recruitment to the Detail. Captain Bixler further stated that if interviewed, he would tell the truth." (O'Beirne Decl., ¶¶ 15-16.)

Thereafter,

"[o]n February 4, 2023, per Department policy, Plaintiff Jaramillo initiated a personnel complaint on Officer Boykins' behalf stating that Boykins believed the Department's singling out of Black officers for recruitment to the Mayor's Detail constituted race discrimination." (O'Beirne Decl., ¶ 17.) "Like Plaintiff Jaramillo, Plaintiff Bixler reasonably believed that the Department's singling out of Black officers for recruitment to the Mayor's Detail violated Government Code section 12940, et seq., and other applicable federal, state, and local statutes and regulations." (O'Beirne Decl., ¶ 21.) Then, "[o]n or about February 9, 2023, Officer Boykins was interviewed by Internal Affairs regarding his personnel complaint. During his IA interview, Officer Boykins identified Chief of Police Michel Moore and Captain II Mario Mota, among others, as being responsible for what he believed to be unlawful discrimination," and "Officer Boykins identified Plaintiff Bixler, Plaintiff Jaramillo, and Captain Brian Bixler, among others, as witnesses to his complaint." (O'Beirne Decl., ¶¶ 18-19.) "In or around March 2023, Plaintiff Jaramillo was interviewed by Internal Affairs regarding Officer Boykins' personnel complaint and disclosed information indicating that [] the Department's singling out of Black officers for recruitment to the Mayor's Detail constituted race discrimination." (O'Beirne Decl., ¶ 22.)

Plaintiffs' counsel attests that "[i]n or around August 2023, Captain Brian Bixler retired, and Captain Mota succeeded him as the Captain III over Metro. Immediately, Captain Mota took actions to retaliate against Boykins and Pacheco, as well as Plaintiffs. First, in the summer of 2023, Captain Mota ended Boykins's and Pacheco's long-term loans to the Task Force, resulting in them being returned to Metro Division." (O'Beirne Decl., ¶ 23.) "Thereafter, from in or around August of 2023 through in or around March of 2024, Captain Mota insisted on Metro officers working the Task Force chase unit be placed on a strict rotation. This resulted in the chase unit being made up of Metro officers with little to no experience in working with the Task Force, and little to no experience utilizing the specialized tactics the Task Force employs." (O'Beirne Decl., ¶ 24.) "Plaintiff Bixler and Plaintiff Jaramillo repeatedly reported that Metro was sending officers who were not tactically sound to the Task Force, resulting in officer safety issues. Captain Mota, unmoved, continued to rotate officers without the necessary training and experience to the Task Force chase unit." (O'Beirne Decl., ¶ 25.) "Since the chase unit officers are primarily responsible for the ultimate arrest of the dangerous fugitives the Task Force is sent after, this unreasonably jeopardized the safety of Plaintiffs, who are required to deploy

with the Task Force on nearly all operations, as well as the rest of the Task Force members.” (O’Beirne Decl., ¶ 26.) Then, in “August of 2023, Captain Mota took actions to punish Officer Boykins and Officer Pacheco for a non-disciplinary matter (i.e., not wearing their seatbelts during a five-minute vehicle pursuit of an armed robbery suspect). (Compl. ¶42.) That same month, Plaintiff Jaramillo disclosed an email to Internal Affairs indicating that Mota was misusing his position in the LAPD to take retaliatory actions against Officer Boykins and Officer Pacheco.” (O’Beirne Decl., ¶ 27.) “Department supervisors, including Captain Mota, formed the belief that Plaintiff Bixler would similarly provide information to IA to support the conclusion that Mota was retaliating against Officers Boykins and Pacheco.” (O’Beirne Decl., ¶ 28.)

“On December 27, 2023, Officer Boykins and Officer Pacheco each filed a Government Claim for Damages with the City of Los Angeles alleging that their long-term loans to the Task Force were ended in retaliation for Boykins’ race discrimination personnel complaint... Both Government Claims identified Plaintiff Bixler and Plaintiff Jaramillo as witnesses.” (O’Beirne Decl., ¶ 29.) “On multiple occasions thereafter, Captain Mota and Deputy Chief David Kowalski (who is close friends with Mota) have taken multiple actions to materially and adversely impact the terms and conditions of Plaintiffs’ employment, including but not limited to: openly maligning their supervisory skills in front of other LAPD command staff; denying them and their officers resources necessary to keep them safe; and attempting to remove responsibilities from them and the Task Force.” (O’Beirne Decl., ¶ 30.) “For example, Captain Mota and Deputy Chief Kowalski have informed other high-ranking command staff, including but not limited to Interim Chief of Police Dominic Choi, Assistant Chief Blake Chow, and Deputy Chief Michael Rimkunas, that Plaintiff Bixler and Plaintiff Jaramillo are running the Task Force ‘unsafely,’ or words to that effect; that they have no control over their officers; and that Plaintiff Jaramillo is unqualified to serve as a Detective III. These statements are patently false and have been made with the intent to derail Plaintiffs’ careers.” (O’Beirne Decl., ¶ 31.) “As a result of the Department’s actions, Plaintiffs have been placed in unnecessary danger and have suffered damage to their reputations,” and “[t]he Department has further taken other actions to adversely and materially impact the terms and conditions of Plaintiffs’ employment.” (O’Beirne Decl., ¶¶ 33-34.)

Plaintiffs assert that they demonstrate good cause because “Plaintiff’s counsel’s declaration has articulated a plausible factual scenario that Plaintiffs were subjected to retaliation by the

Department after they witnessed, observed, and reported race discrimination.” (Mot., 14:18-20.) The Court finds that Plaintiffs’ counsel’s declaration demonstrates that retaliation may have occurred.

Plaintiffs next contend that the documents sought are discoverable because “[t]he requested investigation concerns the very incidents that are the subject of the civil claim.” (O’Beirne Decl., ¶ 38.) Plaintiffs’ counsel explains that “[t]he complaint face sheet and the complete witness interviews in audio or transcript form, or both, for LAPD Internal Affairs investigation Complaint Form (‘CF’) No. 25-003389 conducted in response to the instant lawsuit, Case No. 25STCV14105, to determine whether Captain Mota, Deputy Chief Kowalski, and others retaliated against Plaintiffs after they filed this lawsuit.” (O’Beirne Decl., ¶ 36.) “A ‘complaint face sheet’ in the LAPD is a three-page form that is the first document created whenever a personnel complaint is initiated against an LAPD employee.” (O’Beirne Decl., ¶ 37.)

Moreover, Plaintiffs’ counsel attests that “Plaintiffs will have the burden of proving the elements of their retaliation claims at trial. Specifically, Plaintiffs will have the burden of proving that they engaged in protected activity under Labor Code § 1102.5” and “[t]he complaint face sheet and witness interviews from the investigation that Plaintiffs request through this motion plausibly contain admissible evidence that will help Plaintiffs meet this burden.” (O’Beirne Decl., ¶¶ 39-40.) “Plaintiffs will also have the burden of proving at trial that their complaints and/ or testimony in support of Boykins and Pacheco motivated the adverse employment actions against them which led to this lawsuit.” (O’Beirne Decl., ¶ 41.) “Department supervisors, including Chief Michel Moore, Deputy Chief Kowalski, and Captain Mota formed the belief that Plaintiffs Bixler and Jaramillo would support Officer Boykins’ IA complaint related to his reporting of race discrimination in violation of the FEHA and other laws, statutes, and regulations. Plaintiff Bixler had heard relevant information and Plaintiff Jaramillo heard relevant information and reported the conduct.” (O’Beirne Decl., ¶ 42.) “Captain Mota then became Captain III of Metro and took retaliatory actions against Boykins, Pacheco, Jaramillo, and Bixler. Mota placed officers in the chase unit on a strict rotation that caused officer safety issues and unreasonably jeopardized the safety of Plaintiffs who deployed with the Task Force.” (O’Beirne Decl., ¶ 43.) “Following Boykins and Pacheco’s Government Claims, Captain Mota and Deputy Chief David Kowalski openly maligned Plaintiffs’ supervisory skills in front of other LAPD command staff; denied them and their officers resources necessary to

keep them safe; and attempted to remove responsibilities from them and the Task Force. Mota and Kowalski informed other high-ranking command staff that Plaintiffs Bixler and Jaramillo are running the Task Force 'unsafely,' or words to that effect; that they have no control over their officers; and that Plaintiff Jaramillo is unqualified to serve as a Detective III. These statements are patently false and have been made with the intent to derail Plaintiffs' careers. Kowalski even refused to deploy the LAPD's SWAT Team to assist the Task Force with apprehension of armed and dangerous felony suspects or has erected barriers to intentionally withhold SWAT's assistance. As a result, Plaintiffs have been placed in unnecessary danger and have suffered damage to their reputations. Further, each Plaintiff's ability to advance, promote, and/or obtain coveted positions in the future has been and/or will continue to be adversely affected." (O'Beirne Decl., ¶ 45.) The foregoing incidents gave rise to the instant lawsuit, and "[i]n November 2025, counsel for Plaintiffs received correspondence from Sergeant II Gretchen Skaggs requesting an interview with Lieutenant Bixler and Detective Jaramillo as part of an investigation based on the lawsuit that they filed. Sergeant Skaggs stated that the main focus of the investigation would be the retaliation reported in the lawsuit. Sergeant Skaggs provided the CF number of the investigation. The LAPD conducted this investigation to determine whether Mota, Kowalski, and others took any retaliatory actions against Plaintiffs in response to their protected activity." (O'Beirne Decl., ¶ 47.)

"The relevancy of the complaint face sheet and witness interviews from this investigation is self-evident," and "the witness statements in the investigation file are important for cross-examination and impeachment purposes." (O'Beirne Decl., ¶¶ 48-49.) Plaintiffs' counsel attests that "[u]pon information and belief, LAPD interviewed Mota, Kowalski, and other employees as part of these investigations[.] Plaintiffs are thus entitled to the interviews and face sheets to impeach testimony and/or refresh recollections." (O'Beirne Decl., ¶¶ 50-51.)

Plaintiffs discuss *Riske*
v. Superior Court (2016) 6
Cal.App.5th 647, stating that "[t]he *Riske* decision provides
a model for Pitchess discovery in civil employment cases." (Mot., 14:4.)
In *Riske*, the plaintiff "sued the City of Los Angeles (City) alleging
the Los Angeles Police Department (Department) had retaliated against him for
protected whistleblower activity by failing to assign or promote him to several

positions, selecting instead less qualified candidates," and filed a discovery motion under Evidence Code sections 1043 and 1045.

(Id. at p. 651.) The City asserted that the

plaintiff "failed to show good cause because he provided no specific evidence in his supporting affidavit" and argued the plaintiff was engaged in a "fishing expedition." (Id. at p. 663.) Pertinently,

the Court of Appeal reasoned that "[g]ood cause in the initial phase of a discovery request for officer personnel records requires a plausible factual showing of materiality. Riske made that showing by articulating his whistleblower activity, a history of being maligned by other officers for that activity and his substantial qualifications for each of the 14 positions for

which he applied... Further particularly is not required." (Ibid.) The Court "requir[ed] the City to

produce the reports sought by Riske for an in camera inspection pursuant to Evidence Code section 1045 and to thereafter order

production of all discoverable information." (Id.

at p. 652.) Plaintiffs assert that Riske demonstrates that "as long

as Plaintiffs here set forth a plausible factual foundation for retaliation

relating to the requested documents, this Court should grant Plaintiff's Motion

and proceed to an in camera review." (Mot., 14:10-11.)

Plaintiffs also cite Haggerty

v. Superior Court (2004) 117 Cal.App.4th 1079 in support of their

request. In Haggerty, the court found that the trial "court did not

abuse its discretion in refusing to limit the discovery to the names, addresses and telephone numbers of the witnesses identified in the Internal Affairs

report." (Id. at p. 1091.) The court stated

that "the requested discovery was important, not only for determining the

events that occurred during the incident, but also for [plaintiff's] counsel to

prepare effective cross-examination of defense witnesses, including to impeach

witnesses whose testimony at trial differs from statements made to the

investigating officers and/or to refresh the recollections of these witnesses."

(Id. at p. 1089.) The Court of Appeal

expressed that there is "a reasonable basis to conclude the internal

investigation file of the incident at issue in the lawsuit could contain

information that was material to the lawsuit. (See Robinson

v. Superior Court (1978) 76 Cal.App.3d 968, 977, 143 Cal.Rptr. 328 [noting

that the relevancy of an investigation of the incident that is the basis for

the lawsuit is 'self-evident'].)." (Id. at p.

1087.)

Plaintiffs contend that “[h]ere, as in Haggerty, the requested investigation concerns the very incidents that are the subject of this civil claim. (O’Beirne Decl. ¶ 38.) As in Haggerty, Plaintiffs will have the burden of proving the elements of their retaliation claims at trial. (O’Beirne Decl. ¶39.) Specifically, Plaintiffs will first have the burden of proving at trial that they engaged in a protected activity under Labor Code § 1102.5. (O’Beirne Decl. ¶ 31.) The complaint face sheet and witness interviews from the first investigation that Plaintiffs request through this motion plausibly contain admissible evidence that will help Plaintiffs meet this burden. (O’Beirne Decl. ¶40).” (Mot., 16:17-22, emphasis omitted.)

Plaintiffs further contend that they “allege that after engaging in the protected activity above, Mota and Kowalski took retaliatory actions against them, which led to this lawsuit. (O’Beirne Decl. ¶¶ 42-45.) The LAPD then conducted an internal investigation to determine whether Mota, Kowalski, and others took any retaliatory actions against Plaintiffs. (O’Beirne Decl. ¶47.) In other words, this internal investigation examined the incidents that are the basis for this lawsuit. (Id.) According to Haggerty, the relevancy of the complaint face sheet and witness interviews from this second investigation is self-evident.” (Mot., 16:24-17:3, emphasis omitted.)

In opposition, the City contends that “Plaintiffs do not articulate good cause for the production of the Internal Affairs (‘IA’) investigation concerning Plaintiffs’ lawsuit—an investigation conducted 1 – 2 years after the events at issue in this case. As made clear in Plaintiffs’ Complaint, the events of this lawsuit occurred between July 2023 and May 2024. The IA investigation, by contrast, would have been conducted sometime after May 13, 2025, upon receipt of Plaintiffs’ lawsuit. Plaintiffs’ Motion alleges that Captain Mario Mota was the ‘bad actor’ who engaged in the alleged unlawful conduct toward them, and neither their pleading nor their Motion indicate that Mota played any role in the LAPD Internal Affairs investigation Complaint (‘CF’) No. 25-003389, conducted in response to the instant lawsuit, Case No. 25STCV14105. Moreover, of paramount importance, Plaintiffs do not claim that they suffered any adverse employment action as a result of the investigation into his lawsuit.” (Opp., 3:11-20.) The City asserts that “Plaintiffs sole cause of action is for whistleblower retaliation under Labor Code §1102.5. They do not have a cause of action for failure to prevent retaliation or discrimination under Govt. Code section 12940, therefore the adequacy or inadequacy of the investigation IA conducted after it received his lawsuit is

simply not at issue here.” (Opp., 4:3-6.) The City contends that “[a]s discussed further below, Plaintiffs do not allege that they suffered any adverse employment action as a result of the IA investigation into their lawsuit. The IA Investigation—its scope, analysis, conclusions, and methodology—is not relevant to Plaintiffs’ single causes of action here, and Plaintiffs do not offer any theory under which these documents would be admissible.” (Opp., 4:9-12.)

The City also “opposes wholesale production of third-party sworn officers’ personnel information and work history, pursuant to their privacy rights.” (Opp., 5:3-4.) The City contends that “the information disclosed during the CF investigation at issue were likely provided under compulsion, with the potential penalty of administrative discipline that could result in discharge, or removal from employment with LAPD. Where third party peace and/or custodial officers provide statements under such potential disciplinary consequences, it is of the utmost importance that their privacy rights are protected. Therefore, to the extent that the Court finds that Plaintiffs have not demonstrated any ‘plausible factual foundation’ for how third-party personnel records (particularly as it relates to their work history and disciplinary history that may be contained within the CFs) are material to the subject matter of the pending litigation, Defendant requests an order of non-disclosure.” (Opp., 5:13-20.) Further, the City “opposes wholesale production of the investigation materials in question absent redaction of third-party birthdates, personal telephone numbers, social security numbers, and the like, pursuant to Art. I § 1 of the California Constitution, which entails the right to privacy. Defendant requests that if the Court is inclined to grant the Pitchess Motion, that the order of the Court explicitly permit the City to redact the foregoing private information.” (Opp., 5:21-25.)

Next, the City contends that Plaintiffs are not entitled to information contained in the requested complaint files relating to the identities of other accused officers. The City cites Penal Code section 832.7, subdivisions (b)(1)(E)(5)-(7), which governs the disclosure of law enforcement personnel records. The City asserts that “information relating to the identity, personal data and information, allegations of misconduct, findings, and adjudication of allegations against other officers accused of misconduct in the requested complaint files should be redacted.” (Opp., 6:18-20.) The City contends that “information contained in witness interviews conducted in the requested complaint files pertaining to the identity, personal data and information, allegations of

misconduct, findings, and adjudication of allegations against other officers accused of misconduct in these investigations should also be redacted. Witness interviews for such investigations are kept in audio format only. In order to redact information from such witness interviews, the audio interviews must first be transcribed.” (Opp., 6:26-7:3.)

In response, Plaintiffs contend that they “need not make a good cause showing for the ‘scope, analysis, conclusions, and methodology’ of the internal investigation as they are not seeking to undermine those factors. Plaintiffs only seek the statements made by personnel in response to the complaint face sheet generated by their civil Complaint.” (Reply, 4:18-21.)

Plaintiffs further assert that the City’s “Defendant’s assertion that the IA investigation has ‘nothing to do with what Plaintiffs allege in their lawsuit’ is simply false. (Opp. 4:13-14.) Indeed, the investigation was done in direct response to Plaintiff’s lawsuit. In the lawsuit, Plaintiffs enumerate how Captain Mota and others retaliated against them in response to their support for two other officers (Derrick Boykins and Jonathan Pacheco, who are the plaintiffs in the related lawsuit) who had reported race discrimination and retaliation. The lawsuit describes specific acts of retaliation, as discussed in the Complaint and Motion. Presumably, upon receiving Plaintiffs’ lawsuit, the internal investigators examined whether the specific acts alleged by Plaintiffs occurred by asking Captain Mota and others about them. (O’Beirne Decl. ¶13.) The investigation has everything to do with what Plaintiffs allege in the lawsuit.” (Reply, 4:22-5:2.)

Moreover, Plaintiffs contend that the “Plaintiffs are not trying to show that they suffered any adverse employment actions as a result of the investigation into what they alleged in their lawsuit. (Opp. 3: 19-20.) Rather, they are trying to show that they suffered adverse employment actions that led to the investigation into what their lawsuit alleged. (O’Beirne Decl. ¶8.) The internal investigation examined whether they suffered adverse employment actions, i.e. what led to the investigation. (O’Beirne Decl. ¶9.) This explains why the investigators questioned Mota and others about the substance of the lawsuit. (Id.) The answers Mota and others gave to investigators—which is what is sought here—would assist Plaintiffs in proving the elements of their claims, i.e. retaliation, and the attendant adverse employment actions.” (Reply, 3:26-5.)

As for privacy interests, Plaintiffs contend that they “do not seek, nor do Plaintiffs oppose, the redaction of ‘third-party birthdates, personal telephone numbers, social security numbers, and the like’ identified in Defendant’s Section C.” (Reply, 5:11-13.) Plaintiffs also “do not oppose the redaction of other officers’ information in accordance with Penal Code section 832.7, provided the LAPD releases factual information and statements if relevant to a finding against an officer subject to release of information.” (Reply, 5:15-18.)

The Court finds that Plaintiffs demonstrate good cause for the documents requested in this motion. Plaintiffs demonstrate that the documents sought are material to their case because the investigation arose from the allegations in the Complaint or in response to the lawsuit. Plaintiffs also do not appear to seek confidential information pertaining to the third parties, such as their social security numbers. Regardless, Plaintiffs’ reply represents that they do not oppose redactions for privacy concerns or redactions in accordance with Penal Code section 832.7. Further, the Court notes that a finding of good cause is just the first step; so, to the extent that information should be redacted or deemed confidential, the Court will make these determinations after the in camera hearing.

As set forth above, if the court finds good cause, then an in camera hearing must be held. ((Slayton v. Superior Court, supra, 146 Cal.App.4th at p. 61.) After personally examining the records in camera, the trial court shall order disclosure of peace officer personnel records that are “relevant to the subject matter involved in the pending litigation.” (Evid. Code, § 1045, subd. (a); (People v. Mooc, supra, 26 Cal.4th at p. 1226.) If disclosure is ordered, the court must also order that the disclosed information may not be used “for any purpose other than a court proceeding pursuant to applicable law.” (Evid. Code, § 1045, subd. (e); (see Alford v. Superior Court (2003) 29 Cal.4th 1033, 1039-1040 [overruled on other grounds].)

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Conclusion

Based

on the foregoing, the hearing on this matter is continued to _____, 2026
at 2 p.m. in Dept. 508 to allow for an in camera inspection.

At

the continued hearing, the custodian of records for the City shall bring the
records described in Plaintiffs' Notice of Motion.

Plaintiffs are ordered to give
notice of this Order.

DATED: September
14, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court